

Council Meeting

March 10, 2021

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The Claremont City Council held a meeting on Wednesday, March 10, 2021, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join the webinar:

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Members of the Council present, including location and who was in the room:

Ward I Councilor Andrew O'Hearne – Council Chambers, Councilors Sweetser and Stone

At-Large Councilor Dale Girard – Home, alone

At-Large Councilor Erica Sweetser – Council Chambers, Councilors O'Hearne and Stone

Assistant Mayor Allen Damren – Home, alone

Mayor Charlene Lovett – Home, alone

At-Large Councilor Debora Matteau – Home, alone

At-Large Councilor Nicholas Koloski – Office, alone

Ward II Councilor James Contois – Home, alone

Ward III Councilor Jonathan Stone – Council Chambers, Councilors O'Hearne and Sweetser

Also present:

Edward Morris, City Manager

Mary Walter, Finance Director

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to accept the minutes of the February 4, 2021, City Council meeting.

Roll call vote:

O’Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

A motion was made by Councilor Matteau and seconded by Councilor Sweetser to accept the minutes of the February 10, 2021, City Council meeting.

Roll call vote:

O’Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to accept the minutes of the February 24, 2021, City Council meeting.

Councilor Koloski said on page 5 regarding Redistricting, he would like added that “Councilor Koloski was displeased that a Councilor’s opinion was published in the Council packet, citing that he had never seen that before.” He said there were comments from two other Councilors as well.

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Damren to table these minutes to the next meeting.

Councilor O’Hearne said this is so that Councilor Koloski can have his stuff added. Also, Councilor O’Hearne said he has some thoughts he wants to add to it, too.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

MAYOR'S NOTES

Mayor Lovett thanked those who came out to vote. Only 7% voted. She said NH Food Bank will be distributing food Tuesday, March 16, 12 noon-2:00 p.m. at Runnings parking lot. This is open to those who need it.

CITY MANAGER'S REPORT

- **New England Grassroots Environment Fund Grant** - The Claremont Conservation Commission has been awarded a \$500 grant from the New England Grassroots Environment Fund Grant. He thanked the members of the Conservation Commission for their initiative to apply for the grant and their commitment to educating the citizens of Claremont on conservation and environmental issues.
- **Fire Prevention Grant** – The Fire Department, with the help of Bill Wilmot, Accreditation Coordinator, and Amanda Benoit, Administrative Assistant, has applied for \$30,000 for the purchase of smoke detectors from the FEMA AFG Fire Safety Grant Program. If received, this grant will allow the Fire Department to install smoke detectors in 240 homes at 5 detectors per home.
- **Blower Project** – The Waste Water Treatment Plant blowers are in place and installation should start soon.
- **Eastern States Cup Enduro Mountain Bike Race** – Claremont has been selected by Eastern States Cup Enduro Mountain Bike Race Series and targeted Arrowhead Recreation Area as their desired location to host an East Coast Enduro Race and one of three Enduro World Series qualifying events August 20-22.

The Deputy Building Inspector/Health Inspector has submitted his resignation. The City is working to fill the vacancy as quickly as possible.

- **COVID-19 Update** – As of this morning Claremont has nine active cases. The current Sullivan County infection rate is .66.

Vaccinations:

Fire Chief Bryan Burr continues to stay in regular communication with the State of New Hampshire and our regional health network to monitor and help with the vaccination effort. Claremont Firefighters that are trained to the Advanced EMT level or higher continue to assist at the vaccination site, and our Police Department continues to provide a presence to help with traffic flow and security. The NH mass vaccination site vaccinated 12,000 people in three days. There has been some confusion with scheduling and rumors the Claremont site is closing. The City will check this out.

Councilors asked questions regarding the Monthly Reports that were placed in the Council packet.

- Finance Report – Councilor Girard asked if the Finance Report can be changed so that property taxes show up on the revenue report.
- Planning and Development Department Report – Councilor Koloski said two windows are open at 170 Main Street.
- Police Department Report – Councilor Girard asked if a breakdown of calls over the month can be done. Police Chief Mark Chase said yes.
- Public Works Report – Councilor Girard asked about the future color of the trucks. Mr. Morris said they will be red. This was discussed with Public Works employees.
- Fire Department Report – Mayor Lovett asked about the motor vehicle vs pedestrian incident. Fire Chief Bryan Burr will review the report and report back to the Council.
- Public Works Report – Mayor Lovett asked about an update on Get the Lead Out. Director Alex Gleeson said that can added into the notes going forward.
- Library Report – Mayor Lovett asked about Library history segments. Director Michael Grace said that history presentations are available to be checked out by groups.

APPOINTMENT TO BOARDS AND COMMITTEES

Historic District Commission

Councilor O’Hearne expressed concern about applications with dates and addresses being whited out and changed. Mr. Morris said the request to reapply is usually done by email. Councilor O’Hearne said that if this is a reapplication and the applicant sends notice of their request to reapply, that email should be included with the application.

A motion was made by Councilor Matteau and seconded by Councilor Girard to re-appoint Erin Angley-Cohen to seat 1 of the Historic District Commission.

Roll call vote:

O’Hearne - yes

Girard - yes
Sweetser - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone to appoint Jonathan Nelson to seat A1 of the Historic District Commission.

Roll call vote:
O'Hearne - yes
Girard - yes
Sweetser - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

Parks and Recreation Commission

A motion was made by Assistant Mayor Damren and seconded by Councilor Girard to appoint Chad Myhre to seat 4 of the Parks and Recreation Commission.

Roll call vote:
O'Hearne - yes
Girard - yes
Sweetser - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

Tax Increment Finance District Advisory Board - Downtown

A motion was made by Councilor Matteau and seconded by Councilor Stone to re-appoint Martha Maki to seat 1 of the Tax Increment Finance District Advisory Board – Downtown.

Mr. Morris said the Tax Increment Finance District Advisory Board – Downtown members submitted emails requesting to reapply for their seats. Councilor O’Hearne asked that those emails be submitted to the Council.

Roll call vote:

O’Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Derek Ferland had requested to be reappointed to seat 4 of the Tax Increment Finance District Advisory Board – Downtown, Member At Large. Councilor Girard asked if he could be placed in seat 2 or 3 as an owner or occupant of real property located within or adjacent to the TIF District. Mr. Morris said he had discussed it with Planning and Development Director Nancy Merrill and Mr. Ferland can be appointed to seat 2.

A motion was made by Councilor Girard and seconded by Councilor O’Hearne to reappoint Derek Ferland to seat 2 of the Tax Increment Finance District Advisory Board – Downtown.

Roll call vote:

O’Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

A motion was made by Councilor Matteau and seconded by Councilor O'Hearne to reappoint Robert Porter to seat 5 of the Tax Increment Finance District Advisory Board – Downtown.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Zoning Board of Adjustment

A motion was made by Councilor Stone and seconded by Councilor Matteau to reappoint Richard Collins to seat 1 of the Zoning Board of Adjustment.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

CITIZEN'S FORUM

None.

OLD BUSINESS

Legislative Update

Mayor Lovett gave the update.

- HB586, HB274, HB459, all four Representatives supported the Council's position.
- HB586 appears that it could be dead, because it was tabled but, Senate could attach it to HB2.

- HB154 committee voted Ought to Pass. Assume it will be on the Consent Agenda of the full House.
- SB102 possible that Senate will address expansion of 79-E.
- HB588 tiny homes, Council was against, she was told by NHMA that the building code review board had already approved appendix Q, which addressed building codes for tiny homes. The person who sponsored HB72 is going to offer an amendment to include those codes. If HB72 goes through as amended, it will open the door for the local Planning Board to consider tiny homes. She said the good news as that is local control.
- HB274 reinstitution of some portion of the State's contribution to the NH Retirement System was voted ITL, so it's dead.
- SB72 the Senate will vote on tomorrow; it proposes to restore 15% of the State's share of the employer's contribution. Senator Prentiss will support.
- SB85 & SB88 broadband. Councilors were in favor of broadband expansion. Council supports these two pieces of legislation.
- HB315 Community Power Aggregation Council position was to oppose this. An amendment has been proposed and if it is approved, then Council would stand in support.
- HB439 committee report was to pass, this would restrict Councils to only act on those items identified via statute. Council was in opposition. Committee report was 10-9 Ought to Pass. Need to relay position to Representatives.
- SB99 Senate vote tomorrow to reinstate 40% Meals & Rooms tax revenue. Senator Prentiss will vote in support.
- NHMA Bulletin, article regarding revenue shortfalls due to actions taken by the legislation (i.e. Rooms & Meals tax revenue, revenue sharing, and State Aid Grants). She's working with Mr. Morris to identify the dollar amounts lost. She will send the information to the Council.
- House version of the American Rescue Plan. \$1.3 million is being directed to Claremont for increased expenses or lost revenue due to COVID-19.

Merit Plan Discussion

Mr. Morris said that he talked to Attorney Tanguay regarding Ordinance 582. Mr. Tanguay will work with the City to complete the Merit Plan update at no further charge. He said Mr. Tanguay had concerns about the Merit Plan being in City Code.

Shawn Tanguay, Attorney, talked about the Merit Plan that is in the City Code. The vast majority is personnel policies that one would find in an employee handbook. There are two competing documents, the Merit Plan and the Merit System, which creates a lot of confusion. Codifying something takes time and cost. The better approach is to have a personnel policy outside of the Code to be amended by the City Manager and Human Resources Manager as they see fit. It's in the City's best interest and would save money to return to what the Charter intended, and to have a separate personnel policy.

Mr. Tanguay and Mr. Morris said that any changes would go through the Personnel Advisory Board.

A majority of the Council agreed that Mr. Tanguay and Mr. Morris should work out what needs to be extracted from the Code.

Some Councilors wanted to know what the history was between the Merit System and the Merit Plan. Mr. Morris said the City would review and come back to Council.

Mr. Morris said he spoke to the attorneys regarding Merit Plan insurance, that since the insurance portion is not codified in the City Code, he can move forward with the move from 7% to 10%. So, he plans to do that with an effective date of April 1. He will update the Council as this moves forward.

NEW BUSINESS

City Fee Schedule – Public Hearing

Mr. Morris said this is an annual update. Assessing was changing from CDs to flash drives in order to align with other departments.

Councilors had questions about the Food Truck fees. Mayor Lovett recommended Staff review the Policy Committee minutes where that was discussed.

Under City Manager's Office, there were questions about whether or not fees for Carnival, Circus, Wild West Show, Small Tent Show, should be listed, as the carnival that normally comes to Claremont is for the benefit a non-profit organization and the fee is typically waived. Also, there was a question about the Live Entertainment fee for bars with bands and that that fee is not collected. Councilors would like those fees to be cleaned up if they are not being implemented.

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to table this to the next meeting.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - no

Contois - no

Stone - yes

Lovett - yes

Motion carried 7-2.

Councilor Stone asked that Councilors submit suggested Fee Schedule changes to the City Manager.

Multi-Year Agreement for Hydro Electric Plants Net Metering Agreement

Standard Power of America Inc. would like to offer the City of Claremont a quarterly default service reimbursement payment based on the hydroelectric facilities generation, and the City's energy usage. This payment will be limited to \$1,000 per calendar quarter.

Bob Hayden, Standard Power of America Inc., President, explained that net metering programs require contracts and that the PUC (Public Utilities Commission) does review them. Mr. Hayden said the operator or owner of a renewable energy facility is paid the default service rate for their electricity. They are required to provide a benefit to some entity associated with each kilowatt hour generated.

Mr. Morris said the City thinks it is a good idea to enter into this agreement. It contains an early termination clause. The street light bill is enough to be offset by the \$1,000. The money will go into the general fund as revenue.

A motion was made by Assistant Mayor Damren and seconded by Councilor Girard to authorize the City Manager or his designees to enter into a 36-month Net Metering Agreement with Standard Power of America Inc. in order for the City of Claremont to accept a quarterly default service reimbursement payment based on the facilities generation, and the City's energy usage. Payment to be limited to \$1,000.00 per calendar quarter. This agreement may be terminated by either party at any time upon 30 days prior notice.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Funds Transfer – Legal Services

The City has had a substantial increase to legal services needed because of the 91-A requests following the Supreme Court decision, on May 29, 2020, involving the Seacoast Newspapers and the Union Leader. As of today, our legal costs associated with these 91-A requests equal \$30,734.84. We do expect that there will be continued costs throughout the rest of the year. Because of this unexpected cost, we project a need of approximately \$31,000. The City

currently projects a surplus in the Police-Regular pay line item due to the delay in hiring a Deputy Chief, and open positions throughout the year, that will cover this transfer.

Mr. Morris said there has been a substantial increase in legal fees associated with 91-A requests. He asked the Council to move \$31,000 to make the Legal budget whole again. More 91-A requests are expected.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau that the Claremont City Council, pursuant to Article III, Section 45 of the Claremont City Charter, hereby authorizes the City Manager or his designees to transfer the following sums of money between departments, such funds having been raised and appropriated in the 2021 City budget.

Transfer from:	01-421-101-0000 – Police – Regular Pay	\$35,000
Transfer to:	01-417-201-0150 – Legal – Right to Know	\$35,000

Roll call vote:

O’Hearne - no

Girard - yes

Sweetser - no

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - abstain

Lovett - yes

Motion carried 5-3 with 1 abstain.

Department Head Meeting Attendance

Councilors had a discussion about when they wanted to have Department Heads attend Council meetings. The majority of the Council agreed to have a 90-day test period where Department Heads would attend the first Council meeting of the month during the City Manager’s Report. A majority of the Council agreed to not have Department Heads at the meetings at other times other than when they had something on the agenda. A majority of the Council agreed that the Finance Director should attend all Council meetings.

Selection Process for Boards, Committees and Commissions

There was discussion about attendance of board members who were re-applying for their board seats. There was discussion about board members filling out new application forms when re-applying instead of whiting out the old date and writing in the new one. There was discussion of applicants appearing before the Council when they apply for the board seat.

There was discussion about making an application that can be filled out online and to add a place to indicate attendance record and how long the applicant has served on the board.

There was a suggestion to get a recommendation from the chair of the board for re-applications.

Regarding board attendance, Mr. Morris said that is something deForest Bearse, Resource Coordinator, watches, and when necessary, she reaches out to the member and the board chair.

Mayor Lovett said she can review the recording of this topic and put together a list of Councilors' suggestions and then the Council can decide what it wants to do. This can be brought back at the first meeting in April.

Mr. Morris asked Mayor Lovett to submit the document to the Staff for input.

RSA 91-A Compliance

Councilor Matteau said that minutes are a permanent part of the body's records and must be written and open to public inspection not more than five business days after the meeting. If draft minutes are available, then she sees no reason not to post them on the City's website within five business days. She recommended Council consider a motion to direct the City Manager, within 60 days, to have board minutes posted on the City's website (within five business days after the meeting) as well as any video of the meeting.

There was a discussion about adding to the Council page the question and answer emails between the Council and City Manager. Councilors agreed to move discussion of the emails to another night.

Councilors gave a directive to the City Manager that the City come into compliance with 91-A within 60 days, to post draft board minutes on the City's website within five business days of the meeting, and that the City Manager give an update to the Council in 30 days.

COMMITTEE REPORTS

Mayor Lovett thanked the Conservation Commission and the Energy Advisory Committee for their end of year reports that were in a previous packet.

Councilor Stone said the Policy Committee is now meeting the first and third Tuesdays of the month and will meet in person in Council Chambers.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski asked for an update on the bridge work on Jarvis Hill.

Mayor Lovett would like to hear what staff plans are, or if the Conservation Commission will do anything for Earth Day.

Mayor Lovett asked if it is possible to put together a budget folder of questions and answers, and to include that in the Council packet with the proposed budget.

Councilor Koloski asked, regarding the budget, where we stand with code enforcement, now that we are losing the Deputy Building Inspector. He asked if a community the size of Claremont would warrant an addition building inspector.

Councilor Koloski said he doesn't like to see a hodge podge of colors in City vehicles; he asked what the plan is regarding the Public Works vehicle colors. Councilor O'Hearne would also like to know the plan.

Councilor O'Hearne would like to discuss emails in the future. He would like the City Manager to check with other communities to see how they are dealing with that.

Councilor Matteau would like to see a list of all positions in this current year's budget cycle that aren't being filled; include what was saved (salaries and benefits) and the length of time they haven't been filled.

Councilor Matteau would like an analysis of what the increase of the Grand List has been over the last 10 years. She said if the Grand List is growing, the tax rate should come down, if we are level funding.

Mr. Morris' feedback on Councilor requests:

- Minutes of the February 24th meeting moved to the next meeting
- 170 Main Street boards to be put on the side of the building
- Motor vehicle/pedestrian incident
- Get the Lead Out, put in Public Works Report
- Sent emails to Councilors for TIFD applicants
- Time line & tasks for removal of Merit Plan from the City Code
- Try having directors at the first Council meeting of the month for 90 days
- Work on possible application that can be filled online
- Research if other cities post email questions and answers
- Update bridge work from Jarvis Hill
- Discuss with Public Works and Conservation Commission and give update on Earth Day
- Budget questions and answers in one location, and distribute with budget
- Look into additional code enforcement officer and present plan to Council
- Long term plan for Public Works truck color
- List of all vacant positions (unfunded) and savings
- 10-year Grand List chart
- Councilor O'Hearne said to also include that Finance Director was to be at all meetings

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:42 p.m., a motion was made by Councilor O'Hearne and seconded by Councilor Matteau to adjourn.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council